4.8.13 Bioprospecting

Bioprospecting is the process of discovery and commercialization of new products obtained from biological resources. Bioprospecting may involve biopiracy, in which indigenous knowledge of nature, originating with indigenous people, is used by others for profit, without authorization or compensation to the indigenous people themselves.

Biopiracy

Biopiracy can be defined as the manipulation of intellectual property rights laws by corporations to gain exclusive control over national genetic resources, without giving adequate recognition or remuneration to the original possessors of those resources. Examples of biopiracy include recent patents granted by the U.S. Patent and Trademarks Office to American companies on turmeric, 'neem' and, most notably, 'basmati' rice. All three products are indigenous to the Indo-Pak subcontinent.

Biopiracy of Neem

The people of India used neem and its oil in many ways to controlling fungal and bacterial skin infections. Indian's have shared the knowledge of the properties of the neem with the entire world. Pirating this knowledge, the United States Department of Agriculture (USDA) and an American MNC (Multi Nation Corporation) W.R.Grace in the early 90's sought a patent from the European Patent Office (EPO) on the "method for controlling of diseases on plants by the aid of extracted hydrophobic neem oil". The patenting of the fungicidal and antibacterial properties of Neem was an example of biopiracy but the traditional knowledge of the Indians was protected in the end.

Biopiracy of Turmeric

The United States Patent and Trademark Office, in the year 1995 granted patent to the method of use of turmeric as an antiseptic agent. Turmeric has been used by the Indians as a home remedy for the quick healing of the wounds and also for purpose of healing rashes. The journal article published by the Indian Medical Association, in the year 1953 wherein this remedy was mentioned. Therefore, in this way it was proved that the use of turmeric as an antiseptic is not new to the world and is not a new invention, but formed a part of the traditional knowledge of the Indians. The objection in this case US patent and trademark office was upheld and traditional knowledge of the Indians was protected. It is another example of Biopiracy.

Biopiracy of Basmati

On September 2, 1997, the U.S. Patent and Trademarks Office granted Patent on "basmati rice lines and grains" to the Texas-based company RiceTec. This broad patent gives the company several rights, including exclusive use of the term 'basmati', as well proprietary rights on the seeds and grains from any crosses. The patent also covers the process of breeding RiceTec's novel rice lines and the method to determine the cooking properties and starch content of the rice grains.

India had periled the United States to take the matter to the WTO as an infringement of the TRIPS agreement, which could have resulted in major embarrassment for the US. Hence voluntarily and due to few decisions take by the US patent office, Rice Tec had no choice but to lose most of the claims and most importantly the right to call the rice "Basmati". In the year 2002, the final decision was taken. Rice Tec dropped down 15 claims, resulting in clearing the path of Indian Basmati rice exports to the foreign countries. The Patent Office ordered the patent name to be changed to 'Rice lines 867'.

4.9 Applications of Biotechnology

- Biotechnology is one of the most important applied interdisciplinary sciences of the **21st century**. It is the trusted area that enables us to find the beneficial way of life.
- Biotechnology has wide applications in various sectors like agriculture, medicine, environment and commercial industries.
- This science has an invaluable outcome like **transgenic varieties** of plants e.g. transgenic

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